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Defendant In Pro Per

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES – PASADENA COURTHOUSE

GARY KEARNEY, Plaintiff, vs. **ERIC BRAKEBILL JONES; NUHA SAYEGH; and DOES 1 TO 100,** Defendants.	**Case No. 26PDUD00325** **EX PARTE APPLICATION TO SET ASIDE FEBRUARY 17, 2026 RULING AND RESET HEARING ON DEMURRER; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF ERIC JONES AND NUHA SAYEGH** **[C.C.P. § 473(b); CRC 3.1200 et seq.]**

Date: February 20, 2026 (Friday)
Time: 8:30 AM
Dept: R
Judge: Hon. Judge Presiding

TO PLAINTIFF GARY KEARNEY AND HIS ATTORNEY OF RECORD, BRIAN HECKMANN:

PLEASE TAKE NOTICE that on February 20, 2026, at 8:30 A.M., or as soon thereafter as the matter may be heard in Department R of the above-entitled court, Defendants ERIC JONES and NUHA SAYEGH will, and hereby do, move this Court for an order setting aside the ruling made on February 17, 2026, which overruled Defendants' Demurrer and ordered an Answer within 5 days.

I. GROUNDS FOR THIS APPLICATION

This application is made on the grounds that Defendants' failure to appear at the February 17, 2026 hearing was the direct result of clear clerical error and misinformation provided by the Court itself. Specifically, the conformed copy of the Demurrer returned to Defendants bore a handwritten hearing date of "2/19/26," not 2/17/26. (See Exhibit A, attached hereto.)

Relief is mandatory under Code of Civil Procedure § 473(b) when a party's default or dismissal is caused by effective mistake, inadvertence, surprise, or excusable neglect—especially when that "surprise" is a conflicting hearing date issued by the Court Clerk.

II. RELIEF REQUESTED

Defendants request that the Court:

1. Set aside the Minute Order of February 17, 2026;

2. Reset the Hearing on Demurrer for a future date (or hear it instanter on February 20, 2026);

3. Stay any time to file an Answer pending the hearing on the merits of the Demurrer.

This application is based on this notice, the attached Memorandum of Points and Authorities, the Declaration of Eric Jones and Nuha Sayegh, the attached Exhibit A (Conformed Copy with 2/19 Date), and the papers and records on file in this action.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

This case presents a classic instance of "surprise" and "excusable neglect" warranting mandatory relief under CCP § 473(b). Defendants filed a timely Demurrer on February 6, 2026. The Court Clerk returned the conformed copy of the face page with a handwritten hearing date of February 19, 2026. Relying on this official Court instruction, Defendants prepared to appear on February 19.

However, the Court held the hearing on February 17, 2026—two days early—and overruled the Demurrer in Defendants' absence. The Minute Order of February 17, 2026 itself confirms: "On the Court's own motion, the Hearing on Demurrer – without Motion to Strike scheduled for 02/19/2026 is advanced to this date and vacated." This is dispositive: the Court's own record confirms the original hearing date was February 19, which is exactly what the Clerk wrote on Defendants' conformed copy.

II. RELIEF IS MANDATORY UNDER CCP § 473(b)

"The court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment . . ." (CCP § 473(b).)

The word “shall” is mandatory. Here, the “surprise” is objective and documented: The Clerk wrote “2/19/26” on the filing. It is legally impossible for defendants to be expected to appear on a date different from the one written on their conformed copy by the Court’s own Clerk.

Additionally, the Minute Order confirms the hearing was advanced from 02/19/2026 to 02/17/2026 “on the Court’s own motion.” Defendants received no notice of this advancement. A party cannot be penalized for obeying the written instruction of the Court Clerk when the Court itself advances the hearing without notice to the affected party.

III. CONCLUSION

For the foregoing reasons, Defendants respectfully request that the Court set aside the February 17, 2026 ruling, reset the Demurrer hearing to allow for a hearing on the merits, and stay all deadlines imposed by the vacated ruling.

DECLARATION OF ERIC JONES AND NUHA SAYEGH

I, ERIC JONES, declare:

1. I am a Defendant in this action. I have personal knowledge of the facts set forth herein.

2. On February 6, 2026, we filed a Demurrer to the Complaint in this action.

3. Upon filing, the Court Clerk returned a conformed copy of the Demurrer face page to us.

4. On this conformed copy, the Clerk clearly hand-wrote the hearing date as "02/19/2026." A true and correct copy of this document is attached hereto as Exhibit A.

5. Relying on this date, we cleared our schedules to appear on February 19, 2026.

6. We were shocked to discover on the online court portal that a hearing was held on February 17, 2026, and a ruling was issued against us for non-appearance.

7. Our failure to appear on February 17 was solely due to our reliance on the handwritten date of February 19 provided by the Court Clerk.

8. The Minute Order itself confirms: "the Hearing on Demurrer – without Motion to Strike scheduled for 02/19/2026 is advanced to this date and vacated." This confirms the original hearing date was 02/19/2026, consistent with our conformed copy.

9. I provided notice of this Ex Parte Application to Plaintiff's attorney, Brian Heckmann, by email on February 19, 2026, before 10:00 A.M.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on February 19, 2026, at Temple City, California.

_____

ERIC BRAKEBILL JONES

Defendant In Pro Per

_____

NUHA SAYEGH

Defendant In Pro Per

[PROPOSED] ORDER

SETTING ASIDE FEBRUARY 17, 2026 RULING AND

RESETTING HEARING ON DEMURRER

The Ex Parte Application of Defendants Eric Brakebill Jones and Nuha Sayegh to set aside the ruling of February 17, 2026, having come before the Court, and good cause appearing therefor:

IT IS HEREBY ORDERED THAT:

1. The Minute Order of February 17, 2026, overruling Defendants' Demurrer, is hereby SET ASIDE;

2. The Hearing on Demurrer – Without Motion to Strike is hereby RESET to _____ at _____ in Department R;

3. All deadlines arising from the February 17, 2026 ruling, including the 5-day order to Answer, are hereby STAYED pending the reset hearing;

4. Counsel for Plaintiff shall give notice of entry of this order.

DATED: _____

_____

Hon. Judge Presiding, Dept R

Judge of the Superior Court